

Maryland Workers' Compensation Claim Value Calculator

As an expert in Maryland Workers' Compensation law, this knowledge base integrates details on historical State Average Weekly Wage (SAWW) and maximum rates by year. It provides a comprehensive framework for estimating the value of a workers' compensation claim, focusing on disability benefits under the Maryland Workers' Compensation Commission (WCC) guidelines (Labor and Employment Article, Title 9). The "value" primarily refers to Permanent Partial Disability (PPD) benefits, as they are finite and often form the basis for settlements. Other benefits (e.g., medical, temporary) are ongoing and not fixed-value.

Important Disclaimers:

- This is for educational purposes only and not legal advice. Actual values depend on medical evidence, Commission decisions, settlements, and case-specific factors. Consult a licensed attorney or the Maryland Workers' Compensation Commission.
- Rates are based on the injury/disablement year. The current date is December 17, 2025, so 2025 rates apply to new injuries (SAWW: \$1,493). Historical rates are provided below.
- Average Weekly Wage (AWW) is typically gross wages averaged over 14 weeks pre-injury, capped by SAWW for max benefits.
- Psychological diagnoses are compensable if linked to physical injury or arising from an occupational disease.
- Occupational diseases use the disablement date for rates.
- Settlements may discount future PPD payments into a lump sum.

Historical SAWW and Max Rates Table (2015–2026)

| Year | SAWW | TTD/PTD Max | PPD Tier 1 Max (<75 weeks) | PPD Tier 2 Max (75-249 weeks) | PPD Serious Max (250+ weeks) |

2015	\$1,005	\$1,005	\$168	\$335	\$754
2016	\$1,027	\$1,027	\$172	\$342	\$770
2017	\$1,052	\$1,052	\$176	\$351	\$789
2018	\$1,094	\$1,094	\$183	\$365	\$821
2019	\$1,116	\$1,116	\$187	\$372	\$837
2020	\$1,080	\$1,080	\$181	\$360	\$810
2021	\$1,050	\$1,050	\$176	\$350	\$788
2022	\$1,338	\$1,338	\$224	\$446	\$1,004
2023	\$1,402	\$1,402	\$235	\$468	\$1,052
2024	\$1,456	\$1,456	\$244	\$486	\$1,092
2025	\$1,493	\$1,493	\$250	\$498	\$1,120
2026	\$1,537	\$1,537	\$257	\$512	\$1,153

Notes on Table:

- TTD/PTD Max = 100% of SAWW.
- PPD Tier 1 Max = 16.7% of SAWW (rounded up per statute).
- PPD Tier 2 Max = 33.3% of SAWW (rounded).
- PPD Serious Max = 75% of SAWW (rounded).

- For older years, rates are derived from historical SAWW adjustments; consult official WCC PDFs for pre-2015 data if needed.

Step-by-Step Calculator Process

Answer the questions to compute. Provide specifics for a tailored estimate.

1. Gather Inputs

- **State**: Maryland (applies only here).
- **Date Injured/Disablement**: YYYY-MM-DD (determines year for table lookup).
- **Body Part(s) Injured**: List (e.g., "arm, back").
 - Follow-up: % Disabled (impairment rating, 0-100%, per medical eval).
- **Occupational Disease**: Yes/No (e.g., carpal tunnel). If yes, describe.
 - Follow-up: % Disabled.
- **Psychological Diagnoses**: List (e.g., PTSD, if related to injury/disease).
 - Follow-up: % Disabled (if overall, for unscheduled).
- **Average Weekly Wage (AWW)**: \$ amount (e.g., \$1,200).

2. Determine Disability Type

- **Temporary Total Disability (TTD)**: Full inability; Weekly: $\frac{2}{3} \times \text{AWW}$, max from table. No set duration limit, but ends when maximum medical improvement is reached.
- **Temporary Partial Disability (TPD)**: Partial inability; Weekly: 50% of (AWW - post-injury wages), max 50% SAWW. Duration similar to TTD.
- **Permanent Partial Disability (PPD)**: Lasting impairment; Finite; main value component.
- **Permanent Total Disability (PTD)**: Total inability; Weekly: $\frac{2}{3} \times \text{AWW}$, max from table; lifetime, with potential offsets.
- Occupational/Psychological: Treated as PPD/PTD if compensable; use disablement date for rates.

3. PPD Calculation Framework

Total PPD Value = Weekly Rate $\times$ Total Weeks Awarded. Maryland uses scheduled losses for specific body parts (prorated by % impairment) and unscheduled for others (e.g., back, based on industrial loss of use or whole person impairment via AMA Guides).

A. Determine Weeks Awarded

(Labor and Employment Article § 9-627). Prorate by % disabled. Include scheduled body parts table if applicable.

Scheduled Body Parts Table (Max Weeks for 100% Loss/Impairment):

Body Part/Condition	Maximum Weeks
Arm	300
Leg	300
Hand	250
Foot	250

Eye	250
Hearing (both ears)	250
Hearing (one ear)	125
Thumb	100
Index finger	40
Middle finger	35
Ring finger	30
Little finger	25
Great toe	40
Other toes	10
Disfigurement	156
Other (unscheduled, e.g., back, neck, psychological)	500

- Example: 30% arm impairment = $30\% \times 300 = 90$ weeks.
- Unscheduled: Proportion of 500 weeks based on % impairment or loss of earning capacity.
- Multiple injuries: Combine weeks; may qualify for serious disability if total ≥ 250 weeks (adds 1/3 more weeks).

B. Determine Tier/Rate Level and Weekly Rate
 (Labor and Employment Article § 9-629 to 9-631). Lookup from table.

****Maryland PPD Tiers/Rates Overview**** (Formulas; caps from table):

Tier/Level	Criteria (Weeks Awarded)	Weekly Rate Formula	Max Rate Source
Tier 1	<75 weeks	1/3 AWW	Tier 1 Max from table (16.7% SAWW)
Tier 2	75-249 weeks	2/3 AWW	Tier 2 Max from table (33.3% SAWW)
Serious Disability	250+ weeks	2/3 AWW	Serious Max from table (75% SAWW)

C. Compute Total Value

- Total Weeks = Sum of prorated weeks (add 1/3 if serious disability).
- Select Tier/Level.
- Weekly Rate from above.
- Total PPD Value = Weekly Rate $\times$ Total Weeks.
- Adjust for offsets, etc.

Sample Calculation

****Example 1: Current Year (2025 Injury)****

Inputs: Date: 2025-06-01; Body Part: Arm (30% disabled); Psychological: PTSD (10% overall, unscheduled); AWW: \$1,200.

- Weeks: Arm = $30\% \times 300 = 90$; PTSD = $10\% \times 500 = 50$; Total = 140 weeks (Tier 2).
- Weekly Rate: $2/3 \times \$1,200 = \800 (but cap at \$498 if exceeds).
- Total PPD Value: $\$800 \times 140 = \$112,000$ (capped if necessary; no serious disability here).

****Example 2: Historical (2020 Injury)****

Inputs: Date: 2020-03-15; Body Part: Back (unscheduled, 50% disabled); AWW: \$1,200.

- Weeks: $50\% \times 500 = 250$ (serious disability: add $1/3 = 83.33$, total 333.33 weeks).

- Weekly Rate: $2/3 \times \$1,200 = \800 (cap at \$810 serious max).

- Total PPD Value: $\$800 \times 333.33 \approx \$266,664$.

Adjustments and Other Benefits

- ****Medical****: Lifetime coverage for injury-related treatment, per WCC fee schedule.

- ****Vocational Rehab****: Benefits during rehab; weekly maintenance allowance ($2/3$ AWW, max SAWW).

- ****Death****: $2/3$ AWW (max SAWW) to dependents; funeral up to \$7,000; non-spouse/child cap adjusted annually (e.g., \$98,073 in 2024).

- ****Offsets****: e.g., SSDI reduces PTD; prior awards may offset.

- ****Inflation/Changes****: SAWW updated annually based on Division of Labor and Industry data; rates effective Jan 1.

Provide inputs for a custom calc!